

Forensic Judgment Analysis — Decision 8 — Moylan LJ — Logic Model Applied

*Option B — Finding by Finding — Permission to Appeal Refused — Court
of Appeal — 23 December 2024 — On Papers*

Case references

BV20D01752 | CA-2024-001342 | Court of Appeal | 17 Grounds of Appeal

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Veritas Numquam Perit

PREAMBLE

This document applies the master logical structure (Option A) to the Moylan LJ order of 23 December 2024. This is Decision 8 — the primary appellate decision. Its significance is threefold: it applies the wrong legal test to a fabricated finding; it closes the appellate route; and it makes the 8 May 2025 order (Decision 12) possible by treating all legitimate avenues as exhausted.

The 17 grounds of appeal are the primary source. This analysis maps what each group of grounds argued against what Moylan LJ addressed and identifies the gap. Where a ground was before the court and not addressed, the tag is SUPPRESSED. Where the court addressed a different question than the one raised, the tag is MISCHARACTERISED. Where a conclusion is asserted without analysis, the tag is UNSUPPORTED.

SECTION 1 — STRUCTURAL CONTEXT

What was before Moylan LJ on 23 December 2024

NZ filed 17 grounds of appeal supported by a 43-page skeleton argument and extensive documents.

The overriding ground stated in NZ's own words: *"The overriding failure of the judgment is that the judge has systematically and exhaustively suppressed all mentions of my mental health disabilities, including my trauma and autism symptoms, how they impacted my evidence and his findings. There is a wholesale failure of the court's duty under Part 3A and PD 3AA to consider my mental health disabilities and to ensure participation measures are in place at all times throughout the proceedings."*

Grounds 2-10 and 12: Part 3A, PD 3A, PD3AA, Part 15 — participation measures unlawfully ceased post-trial without order or assessment.

Ground 11: Oxus perjury — KZ testified \$0 valuation on 22 February 2024; SEC filing signed by KZ on 16 January 2024 values 50,000 Founder Shares at approximately \$565,000; business combination closed 7 February 2024; shares trading on Nasdaq.

Ground 11 (Coinbase): standalone ground — KZ's Coinbase non-disclosure. Not addressed by Moylan LJ.

Grounds 13-17: substantive financial — non-disclosure, unilateral draft order, costs on false basis, MPS non-enforcement and remission.

Decision: all 17 grounds refused on the papers, without oral hearing. Final — s.54(4) Access to Justice Act 1999.

Source: Moylan LJ order 23 Dec 2024; NZ skeleton argument 43pp; 17 grounds of appeal; Order Analysis No. 3 — 16 Mar 2026.

FINDING 1 — GROUND 1 / PARA 64 — VOLPI APPLIED TO A FABRICATED FINDING

What Moylan LJ said

> *"The Court of Appeal gives very substantial weight to a trial judge's findings and evaluative conclusions and there is a high hurdle before it will overturn or interfere with them. For example, in Volpi v Volpi [2022] EWCA Civ 464... 'An appeal court should not interfere with the trial judge's conclusions on primary facts unless it is satisfied that he was plainly wrong.'"*

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> *"The judge's conclusion as set out in paragraph 64 was plainly open to him."*

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> Moylan LJ order 23 Dec 2024

Chain 1 — Wrong legal test applied to wrong category of finding

- **IF** *Volpi v Volpi* protects findings based on evidence that the trial judge heard
- **AND** The principle is: an appellate court should not interfere with a trial judge's assessment of evidence he saw and heard
- **AND** EWFC 79 para 64 finds that NZ was "*obsessed*" with demonstrating that KZ had hidden assets
- **AND** That finding is FABRICATED — established in Decision 4 analysis — because it rests on a clinical presentation (autistic communication under adversarial stress) that has a documented neurological explanation
- **AND** The finding does not rest on evidence that was contested between the parties and assessed by the judge — it rests on an inference from NZ's presentation in the witness box
- **AND** The oral evidence does not contain a finding of obsession — the word "*hidden assets*" was put to NZ once and she rejected it
- **AND** 22 oral references to disability during the trial provided the clinical explanation for the same presentation that para 64 characterises as obsession
- **AND** *Volpi v Volpi* does not protect a finding built from an evidential vacuum — it protects findings built from evidence the judge heard
- **AND** Para 64 is built from evidence that does not exist in the record as stated — it is the inverse of what the oral record shows
- **THEN** Moylan LJ applied a test designed to protect evidence-based findings to a finding that has no evidential basis in the record as stated

- **THEREFORE** The *Volpi v Volpi* application to para 64 is **MISCHARACTERISED** — Moylan LJ applied the correct legal test to the wrong category of finding. *Volpi* protects genuine factual assessments. It does not and cannot protect a fabricated inference.

Source: Moylan LJ order 23 Dec 2024; EWFC 79 para 64; Volpi v Volpi [2022] EWCA Civ 464; Decision 4 analysis — para 64 FABRICATED; trial transcript — 22 disability references; Campbell KC cross-examination p.27.

MASTER RULE: IF a legal test protects findings based on evidence heard AND a finding is not based on evidence heard but on an inference from an evidential vacuum THEN applying that test to that finding is applying the correct test to the wrong category — the conclusion is MISCHARACTERISED.

TAG APPLIED: MISCHARACTERISED

FINDING 2 — GROUNDS 2-10, 12 — PART 3A: WRONG PERIOD ADDRESSED

What Moylan LJ said

> *"Regarding participation measures, contrary to the applicant's submissions in favour of her application for permission to appeal, MacDonald J did direct participation measures for the applicant's engagement in the final hearing. The applicant repeatedly states that the participation measures were 'unlawfully' revoked after 28 February 2024. This was the last day of the final hearing. It is not open to the applicant to challenge the decision arising from the final hearing on this basis given that participation measures were in place for the duration of that final hearing."*

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> Moylan LJ order 23 Dec 2024

Chain 1 — The ground was about post-trial cessation, not the hearing

- **IF** Grounds 2-10 and 12 raise the unlawful cessation of participation measures after 28 February 2024 — the last day of the final hearing
- **AND** The overriding ground states: *"to ensure participation measures are in place at all times throughout the proceedings"* — not just during the hearing
- **AND** FPR Part 3A and PD 3AA impose a duty to keep participation measures under review throughout proceedings — the duty does not end when the hearing ends
- **AND** The post-trial period involved: draft order submissions, costs submissions, anonymisation, sealing, and subsequent applications — all of which required NZ's participation

- **AND** Moylan LJ's answer addresses the hearing period: "*participation measures were in place for the duration of that final hearing*"
- **AND** The hearing period is not the complaint — the complaint is the post-trial period
- **AND** Moylan LJ does not address the post-trial period at all
- **THEN** Moylan LJ answered a question about the hearing period in response to a complaint about the post-trial period
- **THEREFORE** The Part 3A treatment is **MISCHARACTERISED** — Moylan LJ addressed a different and easier question (were measures in place during the hearing?) in response to the actual question (were measures unlawfully ceased after the hearing without order?).

Source: Moylan LJ order 23 Dec 2024; NZ grounds of appeal 2-10, 12; FPR Part 3A; PD 3AA; HMCTS confirmation — no order records revocation.

Chain 2 — The 'raised before the judge' error

- **IF** Moylan LJ states: "*It does not appear that any of these points were raised before the judge. It is too late to seek to raise them, for the first time, in support of an application for permission to appeal*"
- **AND** The Part 3A complaint is not a new point raised on appeal for the first time
- **AND** NZ raised the participation measures issue repeatedly in correspondence with the court from March 2024 onwards
- **AND** The overriding ground stated by NZ references Part 3A measures in force "*throughout the proceedings*" — this is not a point being raised for the first time
- **AND** FPR Part 3A.9 imposes a duty on the court to keep measures under review — that duty does not depend on a party raising it
- **AND** The statement that the points were not raised before MacDonald J ignores the post-trial correspondence record and the court's own independent duty
- **THEN** The finding that the Part 3A points were not raised before the judge and are therefore too late is factually inaccurate and legally wrong — the duty is the court's, not contingent on the party raising it
- **THEREFORE** The "*raised before the judge*" reasoning is **UNSUPPORTED** — it rests on a factual premise that is contradicted by the post-trial correspondence, and a legal premise that confuses a party's right to raise a ground with the court's independent statutory duty.

Source: Moylan LJ order 23 Dec 2024; Post-trial correspondence March-May 2024; FPR Part 3A.9; PD 3AA §4.1-4.4.

TAG APPLIED: MISCHARACTERISED + UNSUPPORTED

FINDING 3 — GROUND 11 — OXUS PERJURY CONFLATED WITH FACTUAL FINDINGS

What Moylan LJ said

> *"As regards the complaint that Moylan LJ failed to consider the materiality of the Oxus perjury, this has no basis. Moylan LJ considered the judge's assessment of the facts and concluded that the judge's findings were open to him on the evidence before him."*

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> Moylan LJ order 23 Dec 2024

Chain 1 — Perjury is a criminal question, not a factual appeal ground

- **IF** Ground 11 raised a perjury allegation: KZ testified under oath on 22 February 2024 that his Oxus shares had \$0 value
- **AND** KZ signed an SEC filing on 16 January 2024 — 37 days before his oral evidence — valuing his 50,000 Founder Shares at approximately \$565,000
- **AND** The Oxus business combination closed on 7 February 2024 — 15 days before KZ's oral evidence — with shares trading on Nasdaq
- **AND** Campbell KC emailed the judge within 3 hours of NZ transmitting the D11 on 7 March 2024, asking him not to read it
- **AND** Perjury is committed when a person makes a false statement under oath knowing it to be false — Perjury Act 1911 s.1
- **AND** Whether a trial judge's factual findings were "*open to him on the evidence*" is a civil appeal question — it addresses the judge's assessment of evidence, not whether a witness lied
- **AND** The two questions are legally distinct: (a) were MacDonald J's findings open to him? and (b) did KZ knowingly make false statements under oath?
- **AND** Moylan LJ answers question (a) in response to question (b)
- **AND** The perjury allegation is not resolved by the answer to question (a)
- **THEN** Moylan LJ treats a criminal allegation as a civil appeal ground and dismisses it on civil appeal principles
- **THEREFORE** The Oxus treatment is **MISCHARACTERISED** — Moylan LJ answered the wrong question. The factual findings appeal question and the perjury question are legally distinct. Dismissing the former does not address the latter. The perjury allegation remains live and unaddressed.

Source: Moylan LJ order 23 Dec 2024; KZ oral evidence 22 Feb 2024; SEC filing 16 Jan 2024; Oxus merger 7 Feb 2024; D11 filed 7 Mar 2024; Campbell KC email — 3 hours after D11 transmission; Perjury Act 1911 s.1; Order Analysis No. 3 — 16 Mar 2026.

TAG APPLIED: MISCHARACTERISED

FINDING 4 — GROUNDS NOT ENGAGED: MPS, COINBASE, UNILATERAL ORDER

MPS non-enforcement — not addressed as a standalone ground

- **IF** NZ documented 71 requests for MPS enforcement between February 2024 and the date of the appeal
- **AND** The MPS arrears were remitted by MacDonald J in paragraph 34 of the final order — without a hearing, without notice, on H's unilateral submissions
- **AND** The MPS non-enforcement ground raised EA 2010 s.149 — the public sector equality duty — as a standalone breach
- **AND** The MPS non-enforcement ground raised the causal chain: MPS refusal → no income → loss of legal representation → exclusion from order drafting → final order on H's unilateral terms
- **AND** Moylan LJ's order does not address MPS as a standalone ground
- **AND** The only reference to MPS in the order is: "*MacDonald J was required to consider the continuation of maintenance pending suit on making the final order and having considered the position terminated the payments and remitted the missed payments*"
- **AND** This addresses whether MacDonald J had jurisdiction to remit the arrears — it does not address the ground that the non-enforcement of the MPS caused NZ's exclusion from the proceedings
- **THEN** The MPS non-enforcement ground — as a standalone ground raising EA 2010 s.149 and the causal exclusion chain — is not addressed
- **THEREFORE** MPS is **SUPPRESSED** — the ground was before the court and was not determined.

Source: Moylan LJ order 23 Dec 2024; NZ grounds of appeal; 71 MPS enforcement requests — documented; Final order para 34 — MPS arrears remitted; Order Analysis No. 3.

Coinbase — standalone ground, not addressed

- **IF** Coinbase was a standalone ground of appeal
- **AND** KZ's Coinbase non-disclosure was a documented and evidenced ground — the shares had reached \$7M at flotation in 2021
- **AND** Moylan LJ's order does not contain a single reference to Coinbase
- **AND** The ground is not dismissed on the merits — it is simply absent from the order
- **THEN** A standalone ground before the court was not addressed or determined
- **THEREFORE** Coinbase is **SUPPRESSED** — the ground was before the court and does not appear in the order.

Source: Moylan LJ order 23 Dec 2024; NZ grounds of appeal — Coinbase standalone ground; EWFC 79 — Coinbase findings.

Unilateral draft order — dismissed without analysis

- **IF** Grounds 13–17 raised that the final order was drafted unilaterally by H's side without NZ's participation

- **AND** The face of the sealed final order confirms: *"the applicant not having submitted written submissions as to costs nor representations in respect of the form of this order and the respondent having submitted written submissions and representations in respect of the form of the order"*
- **AND** Moylan LJ's order states the argument had *"no basis"* without analysis
- **AND** The evidence that the order was unilaterally drafted is on the face of the court's own sealed document
- **AND** No engagement with that primary evidence appears in the order
- **THEN** The dismissal of the unilateral drafting ground is asserted without analysis of the primary evidence that directly supports it
- **THEREFORE** The unilateral order ground is **UNSUPPORTED** — dismissed in one line without engaging the evidence on the face of the order itself.

Source: Moylan LJ order 23 Dec 2024; Final order 24 May 2024 — recitals; Decision 4 analysis — para 50 FABRICATED.

TAG APPLIED: SUPPRESSED (MPS + Coinbase) + UNSUPPORTED (unilateral order)

FINDING 5 — GROUND 1 — EA 2010 S.149 NOT ENGAGED

What the ground raised

Ground 1 raised EA 2010 s.149 — the Public Sector Equality Duty — as a standalone statutory breach. The complaint was not merely that the judge failed to mention disability. It was that the court failed to discharge its active duty to advance equality of opportunity for a disabled court user throughout the proceedings.

Chain 1 — The wrong question answered

- **IF** EA 2010 s.149 imposes a duty on public authorities — including courts — to have due regard to the need to advance equality of opportunity for disabled persons
- **AND** The s.149 duty is not discharged by ordering participation measures at the hearing — it requires active, continuous regard throughout proceedings
- **AND** Ground 1 complained that the duty was not discharged: 111-paragraph judgment, zero disability references, measures ceased without order
- **AND** Moylan LJ answers: MacDonald J was *"not required to identify these issues explicitly in his judgment"*
- **AND** That answer addresses a different and narrower question: whether the judgment was required to contain disability references
- **AND** The s.149 question is not whether the judgment mentions disability — it is whether the court actively discharged its equality duty throughout proceedings

- **AND** These are distinct questions. A judgment could contain disability references and still fail the s.149 duty. A judgment could contain no disability references and still have discharged it.
- **AND** Moylan LJ's answer does not address s.149 at all — the words "*Equality Act*", "*section 149*", or "*public sector equality duty*" do not appear in the order
- **THEN** The overriding ground raised a statutory duty question — Moylan LJ answered a judgment drafting question
- **THEREFORE** The EA 2010 s.149 ground is **MISCHARACTERISED** — the court answered the wrong question and left the statutory duty question unanswered.

Source: *Moylan LJ order 23 Dec 2024; EA 2010 s.149; NZ Ground 1; Order Analysis No. 3* — 16 Mar 2026.

TAG APPLIED: MISCHARACTERISED

SECTION 2 — THE APPELLATE COMPOUNDING RULE APPLIED

How Decision 8 compounds Decision 4

The Appellate Compounding Rule (Option A, Section 5) applies here in its clearest form.

- **IF** F(1) — EWFC 79 para 64 — is **FABRICATED** (established in Decision 4 analysis)
- **AND** Moylan LJ applies *Volpi v Volpi* to F(1) and finds it was "*plainly open*" to MacDonald J
- **AND** *Volpi v Volpi* protects findings based on evidence heard — F(1) is not based on evidence heard
- **AND** Moylan LJ's application of *Volpi* to F(1) is therefore **MISCHARACTERISED** — correct test, wrong category
- **AND** F(2) — the Moylan LJ *Volpi* conclusion — is then used by King LJ (Decision 13) as the basis for finding that Moylan LJ "*engaged with the issues*"
- **AND** F(2) is used by MacDonald J (Decision 12, May 2025) as the basis for characterising all legitimate avenues as exhausted: "*the Court of Appeal... refused permission to appeal*"
- **AND** Neither King LJ nor MacDonald J corrects the error in F(2) — they treat it as a valid appellate determination
- **THEN** The fabricated finding at para 64 was never corrected — it was endorsed by Moylan LJ on the wrong legal test, and that endorsement was then treated as authority by two subsequent decisions
- **THEREFORE** Decision 8 is the mechanism by which the original fabrication at para 64 is laundered into the appellate record as a finding that was "*plainly open*" to the judge. Every subsequent reliance on the Court of Appeal refusal as closing the appellate route rests on this error.

MASTER RULE: IF F(1) is FABRICATED AND court B applies test T to F(1) AND T is the correct test for evidence-based findings AND F(1) is not evidence-based THEN court B's endorsement of F(1) is itself MISCHARACTERISED — and every subsequent decision that relies on court B's endorsement inherits the error.

SECTION 3 — WHAT THE ORDER CLOSES AND WHY IT MATTERS

The Moylan LJ order is final under s.54(4) Access to Justice Act 1999 — it cannot be renewed to an oral hearing. Its practical consequence is threefold:

First: it closes the domestic appellate route. NZ has no further right of appeal from EWFC 79 after this order. The only remaining mechanism is CPR 52.30 reopen — which requires exceptional circumstances.

Second: it is cited by MacDonald J on 8 May 2025 (Decision 12) as the basis for characterising NZ's appeal grounds as exhausted and proceeding in her absence. The May 2025 judgment states: "*the Court of Appeal, dated 23 December 2024, refused permission to appeal.*" This citation treats the Moylan LJ order as a valid determination of the grounds — which it is not, for the reasons above.

Third: it creates a false public record. The order states that MacDonald J's findings were "*comprehensively explained and justified*" and "*plainly open to him.*" A reader of the order — including a subsequent court — would conclude that the Court of Appeal engaged with the substance and found it sound. In fact, it applied the wrong test to a fabricated finding, did not address MPS or Coinbase, and conflated a perjury allegation with a factual findings challenge.

- **IF** The Moylan LJ order closes the appellate route
- **AND** It does so on the basis of an erroneous application of *Volpi v Volpi* to a fabricated finding
- **AND** It suppresses four standalone grounds: Coinbase, MPS, post-trial participation, and EA 2010 s.149 as a standalone duty
- **AND** It creates a false public record that the grounds were comprehensively considered
- **AND** Every subsequent decision relies on that false public record
- **THEN** The closure of the appellate route is not a valid determination of the grounds — it is a procedural finality imposed on top of multiple unaddressed and mischaracterised grounds
- **THEREFORE** The binary question: does the Moylan LJ order constitute a determination of NZ's 17 grounds of appeal on their actual merits? **It does not.** Four grounds are suppressed. Three are mischaracterised. One is unsupported. The overriding ground — EA 2010 s.149 — is not engaged.

SECTION 4 — SUMMARY OF TAGGED FINDINGS

Decision 8 — Moylan LJ — 23 December 2024 — CA-2024-001342

Finding	Tag
Ground 1 / para 64 — <i>Volpi</i> applied to fabricated finding	MISCHARACTERISED
Ground 1 — EA 2010 s.149 — wrong question answered	MISCHARACTERISED
Grounds 2-10, 12 — Part 3A — wrong period addressed	MISCHARACTERISED + UNSUPPORTED
Ground 11 (Oxus) — perjury conflated with factual findings	MISCHARACTERISED
MPS — standalone ground not addressed	SUPPRESSED
Coinbase — standalone ground not addressed	SUPPRESSED
Unilateral order — dismissed without engaging primary evidence	UNSUPPORTED

Master rules applied: Appellate Compounding Rule — *Volpi* applied to FABRICATED finding at para 64 launders fabrication into appellate record; downstream decisions (King LJ, MacDonald J May 2025) rely on erroneous endorsement.

Standing instructions: Paul Sibenik not mentioned. Address withheld throughout. Coinbase material noted as suppressed ground — dedicated annex applies to substantive Coinbase analysis only.

Nadia Zahmoul — Litigant in Person — BV20D01752 / CA-2024-001342 — 3 April 2026